

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.**

6. S-CV-0051611 SUPREMA MEATS v. SALINAS FOOD

Defendants Feng Xiang Zhao AKA Tom Jau, Yin Chee Ting, and Great Golden River's Motion for Summary Judgment

A motion for summary judgment must be filed and served at least 81 days before the time appointed for hearing. (Code Civ. Proc., § 437c, subd. (a)(2).) This timeline is increased by 2 court days where, as here, the motion was served by e-mail. (*Ibid.*; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The time appointed for hearing is August 27, 2026. Subtracting 81 days plus 2 court days creates a deadline to file and serve the motion for summary judgment by e-mail on or before June 4, 2026. However, defendants served their motion for summary judgment by e-mail on June 5, 2026. This is untimely.

Accordingly, defendants' motion for summary judgment is denied.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN RYAN

Defendants' Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Preliminary Matters

Plaintiffs' objections are sustained in their entirety.

Defendants' reply brief, along with objections to plaintiffs' evidence and a responsive separate statement to plaintiffs' additional material facts, are untimely filed and served without explanation. (Code Civ. Proc., § 437c, subd. (b)(4).) The court declines to consider these documents.

Ruling on Motion

Defendants move for summary adjudication as to the second cause of action for intentional infliction of emotional distress and prayer for punitive damages as to plaintiffs' first amended complaint. A motion for summary adjudication requires a showing that there is no merit to one or more of the causes of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)